

25VECV02234 25VECV02234

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-10

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Case Number: 25VECV02234 Hearing Date: July 10, 2026 Dept: T

25VECV02234 Kredell v Zoreff

Ex parte application to continue trial 7/10/2026: Denied
without prejudice. The court denied the
stipulation to continue the trial with the following order:

“Denied without prejudice. This case was sent to a
MANDATORY SETTLEMENT CONFERENCE with a cutoff date. Why was the order ignored?
What specific discovery still needs to be done? Why wasn't it done? This case
is already 15 months old. Please resubmit with a DECLARATION EXPLAINING. If
granted, the court will not be inclined to allow all discovery to be reopened
but only limited, and will not continue more than 60 days.”

These questions have not been answered by the ex parte
application.

The
parties were ordered to an MSC, the key part being “MANDATORY.” Why was the order ignored?

What
specific discovery still needs to be done? Why wasn't it done?

In the FSC order, the court stated: “PLEASE NOTE: THE
COURT DOES NOT INTEND TO CONTINUE THE TRIAL DATE. YOU MUST BE READY BY THE FSC.”
This was in writing and also clearly verbally discussed with Mr. Martinez and
Mr. Miller on 12/8/2025. The court gave
the parties 8 months to finish discovery and conduct mediation. By the time of trial, defendant would have
been in the case for 15 months.

This is a relatively non-complex case as the complaint states: On or about December 14, 2024, at 5583 Parkmor Rd., Calabasas CA 91302 ("Subject Property"), Plaintiff Dale Kredell suffered severe injuries when the faulty garage door he was examining malfunctioned, causing him to fall off a ladder. As a result of the fall, Plaintiff fractured his shoulder, L1 and L3 vertebrae, and damage to his tooth. Defendant negligently failed to keep the garage door in good operating order and as a result, through normal use of the garage door, created an unreasonably dangerous condition which was the legal and actual cause of Plaintiffs injuries.

The court still does not see the good cause to continue the trial. This is not PI court.